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(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/04/2019/288.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. A.H. Sunil, No. 857/4, Susitha Pura, Malambe. *of the one part*

and

Peoples Bank, Head Office, No. 75, Sir Chiththampalam A. Gardiner Mawatha, Colombo 02. *of the other part*

Now Therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. K. P. D. Gunarathne, Attorney - at - Law, 'Field Site', Udugama Road, Bataduwa, Galle to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA.
Minister of Labour.

Colombo.

04th January, 2021.



My No.: IR/COM/04/2019/288.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. A.H. Sunil, No. 857/4, Susitha Pura, Malambe. *of the one part*

and

Peoples Bank, Head Office, No. 75, Sir Chiththampalam A. Gardiner Mawatha, Colombo 02. *of the other part*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mr. A. H. Sunil who worked at the Head Office of the Peoples' Bank had been caused injustice in promotions in year 2017 and if so, to what relief he is entitled.

B.K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, this 31st day of December, 2020.

02 - 431

My No.: IR/10/58/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, No. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 13.03.2020 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2183/34 dated 09.07.2020 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 18.01.2020.

Mr. H. Jayathunga, No. 361/1/23, Isuru Uyana, Lower Kosgama, Kosgama. *of the one part*

and

National Paper Company Limited, No. 93, Jawatta Road, Colombo 05. *of the other part*

was referred to Mr. Sarath Liyanage for settlement by arbitration.

And whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 13.03.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.
02 - 432/1

My No.: IR/10/58/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Mr. H. Jayathunga, No. 361/1/23, Isuru Uyana, Lower Kosgama, Kosgama. *of the one part*

and

National Paper Company Limited, No. 93, Jawatta Road, Colombo 05. *of the other part*

Now Therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. A. B. Herath, No. 34/64, 1st Lane, Higgolla Road, Matale to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

My No.: IR/10/58/2013.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. H. Jayathunga, No. 361/1/23, Isuru Uyana, Lower Kosgama, Kosgama. *of the one part*

and

National Paper Company Limited, No. 93, Jawatta Road, Colombo 05. *of the other part*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether the claim made by Mr.H. Jayathunga who worked in the Embilipitiya Paper Factory of the National Paper Company Limited to receive Compensation on the acceptance of voluntary retirement with effect from 01.09.2005 under the voluntary Retirement Scheme issued by Circular No. 475.84/05/VR dated 01.07.2005 is just, and if so, to what reliefs he is entitled.

B.K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, this 31st day of December, 2020.

02 - 432/2

My No.: IR/COM/01/2019/321.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, No. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 23.09.2020 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2195/33 dated 30.09.2020 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 20.07.2020.

Ceylon Estate Staff's Union, No. 06, Aloe Mawatha, Colombo 03. *of the one part*

and

01. R. P. C. Plantations Management Services (Pvt) Ltd, No. 310, High Level Road, Nawinna, Maharagama.
02. Kegalle Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. 03. Namunukula Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. 04. Maskeliya Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. *of the other part.*

was referred to Mr. K. A. Piyarathne for settlement by arbitration.

And whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 23.09.2020.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
12th January, 2021.

02 - 433/1

My No.: IR/COM/01/2019/321.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

Ceylon Estate Staff's Union, No. 06, Aloe Mawatha, Colombo 03. *of the one part*

and

01. R. P. C. Plantations Management Services (Pvt) Ltd, No. 310, High Level Road, Nawinna, Maharagama.
02. Kegalle Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. 03. Namunukula Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. 04. Maskeliya Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. *of the other part.*

Now Therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mrs. L. A. Priyanthi Liyanarachchi, Attorney - at - Law, No. 11/A, Dharmaraja Mawatha, Minuwangoda to be the arbitrator and refer the aforesaid dispute to her for settlement by arbitration.

NIMAL SIRIPALA DE SILVA.
Minister of Labour.

Colombo.

12th January, 2021.

My No.: IR/COM/01/2019/321

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Ceylon Estate Staff's Union, No. 06, Aloe Mawatha, Colombo 03. *of the one part*

and

01. R. P. C. Plantations Management Services (Pvt) Ltd, No. 310, High Level Road, Nawinna, Maharagama.
02. Kegalle Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. 03. Namunukula Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. 04. Maskeliya Plantations PLC, No. 310, High Level Road, Nawinna, Maharagama. *of the other part.*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether the employees of the 3 estate companies, namely, Kegalle Plantations PLC, Namunukula Plantations PLC and Maskeliya Plantations PLC administered by R. P. C. Plantations Management Services (Pvt) Ltd had been caused injustice by being paid as

an allowance, the 25% salary increase which should have been implemented in the 22 Estate Companies from October 2019 in accordance with the agreement signed between the Ceylon Estate Staff's Union and the Employers Federation of Ceylon and if such injustice had been caused to what relief each of them is entitled.

B.K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, this 31st day of December, 2020.

02 - 433/2

My No.: IR/COM/04/2016/134.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4(1)

WHEREAS by Order made under Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956), as amended by Acts, No. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 04.11.2019 and published in the *Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary* No. 2148/58 dated 09.11.2019 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner General of Labour dated 04.10.2019.

01. Mrs. G. G. M. Karunaratne, No. 175/A, Rathnagoda, Kananwila, Anguruwatota. 2. Mrs. L.L.D. Liyanwila, Gertonwatta, Maputugala, Poruwadanda. *of the one part*

and

Janatha Estates Development Board, No. 55/75, Vauxhall Lane, Colombo 02. *of the other part.*

was referred to Miss H. M. Anulawathi for settlement by arbitration.

And whereas it is now deemed expedient that the said Order be revoked, I, Nimal Siripala De Silva, Minister of Labour do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 04.11.2019.

NIMAL SIRIPALA DE SILVA,
Minister of Labour.

Colombo.
04th January, 2021.

02 - 434/1

My No.: IR/COM/04/2016/134.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4(1)

WHEREAS an industrial dispute in respect of the matter specified in the statement of the Commissioner General of Labour which accompanies this order exists between,

01. Mrs. G. G. M. Karunaratne, No. 175/A, Rathnagoda, Kananwila, Anguruwatota. 2. Mrs. L.L.D. Liyanwila, Gertonwatta, Maputugala, Poruwadanda. *of the one part*

and

Janatha Estates Development Board, No. 55/75, Vauxhall Lane, Colombo 02. *of the other part.*

Now Therefore I, Nimal Siripala De Silva, Minister of Labour do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mrs. Anne Dinusha Fernando, Attorney - at - Law, No. 16/29, Jayasinghe Road, Colombo 06 to be the arbitrator and refer the aforesaid dispute to her for settlement by arbitration.

NIMAL SIRIPALA DE SILVA.
Minister of Labour.

Colombo.

04th January, 2021.

My No.: IR/COM/04/2016/134.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

01. Mrs. G. G. M. Karunaratne, No. 175/A, Rathnagoda, Kananwila, Anguruwatota. 2. Mrs. L.L.D. Liyanwila, Gertonwatta, Maputugala, Poruwadanda. *of the one part*

and

Janatha Estates Development Board, No. 55/75, Vauxhall Lane, Colombo 02. *of the other part.*

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is

Whether Mrs. G. G. M. Karunaratne and Mrs. L.L.D. Liyanwila employed at Janatha Estates Development Board have been

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PART I: SEC. (I) – GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA – 05.02.2021

caused injustice in the conversion of salaries as per the Management Services Circular and if so, to what relief they are entitled.

B.K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Dated at the Office of the Commissioner General of Labour,
Colombo, this 31st day of December, 2020.

02 - 434/2